

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

PRESENT:

Mr. Justice Md. Khairul Alam

CIVIL REVISION NO. 1843 OF 2003.

Asma Akhter Chowdhury and another

....Petitioners.

-Versus-

Government of Bangladesh and another

...Opposite parties

None appears

...For the petitioners

Mr. Mizanur Rahman, AAG

...For opposite party No. 3

Heard & Judgment on 16.07.2018

This Rule, at the instance of the defendant Nos. 6-14, was issued calling upon the plaintiff-opposite party Nos.1-3 to show cause as to why Order No.96 dated 01.02.2003 passed by the learned Assistant Judge, Mukhtagacha, Mymensingh in Other Class Suit No.84 of 1999, rejecting an application under Order VII Rule 11 of the Code of Civil Procedure, should not be set-aside.

The facts relevant for disposal of this Rule, in short, are that the present opposite party Nos. 1-3, as plaintiffs,

instituted Other Class Suit No. 93 of 1997 in the Court of Senior Assistant Judge, Sadar, Mymensingh, which on transfer was renumbered as Other Class Suit No. 84 of 1999 in the Court of Assistant Judge, Mukhtagacha, Mymensingh, *impleading*, the present petitioners and the present opposite party Nos. 4-15 as defendants, for a declaration that the judgment and decree dated 08.09.1970 passed in Other Class Suit No. 68 of 1970 is illegal, fraudulent, collusive and not binding upon the plaintiffs, stating *inter alia*, that 8 annas share of .2256 acres of suit land belonged to defendant Nos. 3,4 and 5 along with Promod Mohon Das, and Anil Mahon Das, both sons of Mari Mahon Das and rest 8 annas share belonged to Shukumar Mozumder; that while they were owning and possessing the said land, their names were rightly recorded in S.A. Plot No. 2213 of S.A Khatian No.197. Defendant Nos.1 and 2 of the present suit, as plaintiffs, earlier filed Other Class Suit No.161 of 1969 for specific performance of contract, *impleading* the defendant Nos. 3-5 of the present suit as the defendant Nos.1 -3 and the Assistant Custodian of Enemy Property, Mymensingh as defendant No. 4. On transfer to the 2nd Court of the then Subordinate Judge, Mymensingh,

the said suit was renumbered as Other Class Suit No.68 of 1970. In the plaint of the said Other Class Suit No.68 of 1970, the plaintiffs(defendant Nos. 1 and 2 of the present suit), upon suppressing material facts, stated that by an amicable settlement amongst the parties, defendant Nos. 3, 4 and 5 of present suit became owners of the entire suit land and by executing a bainanama agreed to sell the suit land to the defendant Nos. 1 and 2 of the present suit(Plaintiffs of Other Class Suit No. 68 of 1970); that ultimately alleging that the vendors having failed to execute and register the sale deed the present defendant Nos. 1 and 2 filed Other Class Suit No. 68 of 1970 and obtained an ex-parte judgment and decree dated 08.09.1970 against defendant Nos. 1-3 (defendant Nos. 3 to 5 of the present suit) and on contest against defendant No. 4, the Assistant Custodian of Enemy Property, Mymensingh. It is alleged in the plaint of the present suit that the defendant Nos. 3 to 5 never owned and possessed the entire suit land, actually Shukumar Mozumder was the owner of rest of the 8 annas share in the suit land and there was no amicable arrangement between the co-sharers as appears from SA Khatian No. 197. The present

defendants in collusion with each other created the false agreement and obtained the decree in Other Class Suit No. 68 of 1970 only to grab the property by practicing fraud upon the Court. The Assistant Custodian of Enemy Property, Mymensingh, though contested Other Class Suit No. 68 of 1970 as defendant No.4, but being not aware of the aforesaid facts of forgery failed to bring the same to the notice of the Court. On the first part of October, 1996 after perusing the records of the Other Class Suit No.68 of 1970 and L.A. Case No. 24 of 1965-66, the said fact of forgery was revealed and then the Government as plaintiff instituted the present suit.

Defendant Nos. 6-14, the petitioners herein, entered appearance to contest the suit and also have filed their written statements jointly denying the material allegations of the plaint. They also filed an application under Order VII, Rule 11 of the Code of Civil Procedure, on 12.10.2002, praying for rejection of plaint on the grounds, *inter alia*, that the suit is barred by the principle of *res-judicata* under section 11 of the Code of Civil Procedure as well as barred by limitation under section 95 of the Limitation Act and also barred for want of jurisdiction as because the earlier

judgment and decree, which is under challenge was passed by the then Subordinate Judge, a court superior then the court of Assistant Judge and as such, the present suit is not maintainable and thereby the plaint of the present suit is liable to be rejected. Plaintiffs filed written objection against the said application for rejection of plaint.

The learned Senior Assistant Judge, Mukhtagacha, Mymensingh after hearing both the parties by the impugned order No. 96 dated 01.02.2003 rejected the said application filed by the petitioners for rejection of plaint, under Order VII, Rule 11 of the Code of Civil Procedure.

Being aggrieved by and dissatisfied with the said order dated 01.02.2003 passed by the learned Senior Assistant Judge, Mukhtagacha, Mymensingh in Other Class Suit No.68 of 1970, the Defendant Nos. 6-14, as petitioners, filed this revisional application before this Court and obtained the instant Rule and an order of stay on 10.05.2003.

No one appears to support the Rule.

However, Mr. Mizanur Rahman, the learned Assistant Attorney General appearing on behalf of the opposite party

Nos.1- 3 opposes the Rule contending that the defendant-petitioners filed the application for rejection of plaint under Order VII, Rule 11 of the Code of Civil Procedure mainly on two grounds; firstly on the ground of limitation and *res-judicata* and secondly on the ground of want of jurisdiction. He submits that it is well settled that both limitation and *res-judicata* are mixed questions of fact and law which are to be proved by adducing evidence and for want of jurisdiction the plaint cannot be rejected under Order VII, Rule 11 of the Code of Civil Procedure. He submits that on the aforesaid grounds of *res-judicata*, limitation or want of jurisdiction a plaint cannot be rejected under Order VII Rule 11 of the Code. Lastly, he submits that moreover, from the facts and circumstances it is clear that question of title is very much involved in this case which is required to be resolved by adducing evidence.

Heard the learned Advocate for the opposite parties, gone through the revisional application, perused the plaint, written statement, application filed under Order VII, Rule 11 of the Code of Civil Procedure and the written objection filed thereto and also the judgment and decree of Other

Class Suit No. 68 of 1997, annexed with the Revisional Application.

The impugned order was passed rejecting an application filled under Order VII, Rule 11 of the Code of Civil Procedure. For proper appreciation of the impugned order, the provision of Order VII, Rule 11 of the Code of Civil Procedure is required to be looked into. The same is reproduced below:-

“11. the plaint shall be rejected in the following cases:

- a) Where it does not disclose a cause of action
- b) Where the relief claimed is undervalued, and the plaintiff, on being required by the court to correct the valuation within a time to be fixed by the Court fails to do so.
- c) Where the relief claimed is properly valued, but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the court to supply the requisite stamp-paper within a time to be fixed by the court, fails to do so.
- d) Where the suit appears from the statement in the plaint to be barred by any law.”

A plaint can be rejected only with reference to the statement made in the plaint itself as to whether it falls under any of the clauses of Order VII, Rule 11 of the Code of Civil Procedure as quoted hereinabove. The grounds taken

by the defendant-petitioners in the said application for rejecting the plaint do not fall under Clause a to c of Order VII Rule 11 of the Code. The same at best can remotely be brought under Clause (d) which proves a plaint can be rejected “Where the suit appears from the statement in the plaint to be barred by any law.”

Under the principle of *res-judicata* a plaint can be rejected if a suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court. In the case in hand the petitioners claim that the present suit is barred by *res-judicata* on the ground that point in issue has already been decided in Other Class Suit No. 68 of 1970 forgetting the fact that the decree obtained in Other Class Suit No. 68 of 1970 is under-challenge in the present suit. Moreover, the earlier suit was a suit for specific performance of contract and the present suit is for declaration that the said decree has been

obtained in the said suit for specific performance of contract by practicing fraud upon the court and as such the same is illegal, fraudulent, collusive and not binding upon the plaintiffs. Both the questions of *res-judicata* and limitation as raised, are completely mixed question of law and facts in as much as the allegation is the decree under challenge has been obtained by practicing fraud and using false papers which have been disputed and the disputed question of facts can only be adjudicated after framing of issues in that regard and upon taking evidence thereupon. Thus, there is hardly any scope to reject a plaint either on the plea of limitation or on the plea of *res-judicata*, before framing of issue and taking of evidence are completed. Moreover in the present suit the point raised was not at all an issue in the earlier suit and the same has not been finally adjudicated upon earlier.

Apart from the above the defendant petitioners have taken a plea that since the earlier suit was decided by a court which is superior to the present court; the present court has no jurisdiction to try the same. Now it is also well settled that the jurisdiction of the Court to entertain a suit is to be determined by the allegation made in the

plaint, not by the allegation made in the written statements or any document of the defendants.

From a careful reading of the plaint, it is evident that both the pecuniary jurisdiction and the territorial jurisdiction of the present suit are within the limit of the Court before which this suit has been instituted and was pending at that relevant time.

I have carefully gone through the plaint itself and do not find any statement for which Order VII Rule 11 can be invoked. The settled principle of law is unless from the statement in the plaint itself it is apparent that the suit is barred by law the plaint shall not be rejected. Rather from the statement of the plaint it clearly appears that there are certain allegations which are required to be proved by adducing evidence.

I have also gone through the application filed by the defendant Nos. 4-16 petitioners under Order VII, Rule 11 of the Code of Civil Procedure and also do not find therein any such clear assertion made by the present petitioners with reference to the statement of the plaint from which it can be inferred that the instant suit is clearly barred under

the provision of *res-judicata* or limitation rather the points raised should be adjudicated by framing specific issues relying upon the pleadings of the parties. Thus issues in that regard are required to be framed and evidences in that regard are required to be taken for final adjudication of the real question in controversy.

Thus all the questions raised in the application under Order VII, Rule 11 of the Code of Civil Procedure are all of matters to be decided upon taking evidence after framing of issue. Therefore, the trial Court rightly rejected the said application.

In the case of **Burmah Eastern Ltd. -Vs- B. Estr. Employees Union 18 DLR (HC) 709**, with regard to the provision of Order VII, Rule 11 of the Code of Civil Procedure, this Court observed as follows:

“The Principles involved are two-fold: In the first place, it contemplates that a still born suit should be properly buried, at its inception, so that no further time is consumed on a fruitless litigation. Secondly, it gives plaintiff a chance to retrace his steps, at the earliest possible moment, so that, if permissible under law, he may found a properly constituted case.”

Though at any stage of the suit a plaint can be rejected, but to fulfill the purpose of this provision, as observed in the above-cited case, any application under

Order VII, Rule 11 of the Code of Civil Procedure should be brought at the earliest opportunity. In the case in hand, suit was filed on 02.02.1997 but the application for rejection of plaint under Order VII, Rule 11 of the Code was filed long after five years on 12.10.2002. Hence, it can be inferred that the present petitioners filed the application not to fulfill the above purpose of the provision of Order VII, Rule 11 of the Code of Civil Procedure, but only to delay the adjudication of the suit.

Moreover in the plaint, plaintiff pleaded that the defendants by practicing fraud upon the Court as well as upon the plaintiffs of the present suit by using forged documents obtained a judgment and decree, which is impugned in the instant suit. Therefore, if the plaintiffs able to prove said forgery, limitation will take effect from the date of knowledge of said fraud and said fraud will vitiate every right of the defendant-petitioners.

In view of my aforesaid discussions, observations and findings, I am of the view that the trial Court rightly rejected the application filed under Order VII, Rule 11 of the Code of Civil Procedure by the defendants-petitioners.

Thus, there being no merit in the Rule, the same is liable to be discharged.

In the result, the Rule is discharged, however, without any order as to costs.

The order of stay, granted earlier by this Court, is hereby recalled and vacated.

The trial Court is directed to dispose of the suit as early as possible.

Communicate the order to the Court concerned at once.

Kashem, B.O